



FORTITUDE INFRASTRUCTURE

Veteran Owned & Operated

Directional Drilling



Telecommunications



Fiber Construction



Underground Infrastructure

MUTUAL NON-DISCLOSURE AGREEMENT

(Contractor.Confidentiality.Agreement).

This Mutual Non-Disclosure Agreement (“Agreement”) is entered into as of _____ (“Effective Date”), by and between:

Fortitude Infrastructure

1309 Coffeen Avenue, Suite 1200 Sheridan, Wyoming 82801 (“Fortitude”)

and

Contractor Name: _____

Company Name (if applicable): _____

Address: _____

(“Contractor”)

Fortitude and Contractor may each be referred to individually as a “Party” and collectively as the “Parties.”

This Agreement is based upon the original NDA structure provided by the user.

1. Purpose

The Parties desire to explore and/or engage in a potential business relationship involving telecommunications infrastructure, utility construction, fiber optic installation, directional drilling, project management, subcontracting, engineering, restoration, staffing, and related services (“Purpose”).

Prior to receiving project information, contractor rates, pricing schedules, bid packages, scopes of work, customer information, or contract opportunities from Fortitude, Contractor agrees to maintain the confidentiality of all information disclosed.

2. Definition of Confidential Information

“Confidential Information” means any non-public information disclosed by either Party, whether oral, written, electronic, visual, or in any other form, including but not limited to:

- Contractor rates and pricing

- Bid packages and proposals
- Customer and client information
- Vendor relationships
- Construction methods and operational procedures
- Fiber and utility project details
- Engineering drawings and maps
- Financial information
- Trade secrets
- Business strategies
- Internal processes
- Contracts and subcontract agreements
- Project locations and schedules
- Proprietary software, systems, or workflows

3. Exclusions

Confidential Information does not include information that:

(a) becomes publicly available through no fault of the Receiving Party; (b) was lawfully known prior to disclosure; (c) is received from a third party without breach of confidentiality obligations; or (d) is independently developed without use of Confidential Information.

4. Obligations of Receiving Party

The Receiving Party agrees to:

1. Use Confidential Information solely for the Purpose described herein;
2. Not disclose Confidential Information to any third party without prior written consent;
3. Limit disclosure only to employees, agents, or representatives with a legitimate need to know;
4. Protect all Confidential Information using reasonable commercial safeguards;
5. Immediately notify the Disclosing Party of any unauthorized disclosure or misuse.

5. Non-Circumvention

Contractor agrees that during the term of this Agreement and for a period of two (2) years thereafter, Contractor shall not directly or indirectly circumvent Fortitude Infrastructure by soliciting, contracting with, or attempting to conduct business with any customer, client, municipality, utility provider, prime contractor, or business relationship introduced by Fortitude without prior written authorization.

6. Non-Solicitation

During the term of this Agreement and for a period of two (2) years thereafter, neither Party shall directly or indirectly solicit, hire, recruit, or engage any employee, subcontractor, consultant, or independent contractor of the other Party who became known through the Purpose of this Agreement without prior written consent.

This provision shall not restrict general advertisements or public job postings not specifically targeted toward such individuals.

7. Compelled Disclosure

If disclosure of Confidential Information is required by law, regulation, or court order, the Receiving Party shall promptly notify the Disclosing Party to allow an opportunity to seek protective measures or other appropriate remedies.

8. Return or Destruction of Information

Upon written request by Fortitude, Contractor shall promptly return or destroy all Confidential Information, including copies, notes, electronic files, and records, except for documents required to be retained by applicable law.

9. Term

This Agreement shall remain in effect for two (2) years from the Effective Date.

All confidentiality obligations shall survive for two (2) years following the last disclosure of Confidential Information. Trade secrets shall remain protected for as long as permitted under applicable law.

10. No License or Partnership

Nothing in this Agreement grants either Party ownership rights, licenses, partnership authority, joint venture status, or agency authority.

This Agreement does not obligate Fortitude Infrastructure to award work, provide contracts, disclose rates, or enter into any business relationship with Contractor.

11. Remedies

The Parties acknowledge that unauthorized disclosure or misuse of Confidential Information may cause irreparable harm for which monetary damages alone may be insufficient.

Accordingly, the non-breaching Party shall be entitled to seek injunctive relief, equitable remedies, and any other remedies available at law or in equity.

12. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Wyoming.

13. Entire Agreement

This Agreement constitutes the complete understanding between the Parties concerning confidentiality and supersedes all prior discussions or agreements related thereto.

Any amendments or modifications must be in writing and signed by both Parties.

14. Signatures

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Fortitude Infrastructure

By: _____

Name: _____

Title: _____

Date: _____

Contractor

Company Name: _____

By: _____

Name: _____

Title: _____

Date: _____